

See also: The *Lex Rhodia* 25 ■ Blackstone's *Commentaries* 109 ■ The United Nations and International Court of Justice 212–219 ■ The World Trade Organization 278–283



empire in the 5th century CE, with its dissolution into a series of barbarian successor states, each with its own territorial laws. From the 9th century onward, however, there was economic growth in parts of northern Europe, and commerce revived as a result. Trading centers such as Dorestad, in the Netherlands, flourished. To the south, Arab pirates had made Mediterranean trade dangerous, but after their bases were captured in the 11th century, maritime trading republics such as Amalfi, Pisa, Genoa, and Venice, in Italy, helped boost commerce.

With the increase in trade came an increase in disputes. Merchants who disputed the quality of the goods they had received from foreign traders—or who were trying to recover the value of goods lost at sea by a careless carrier—had little recourse to the regular legal systems. International treaties between states may have covered the treatment of merchants in general, but they did little to help in particular cases. Law courts—

where they existed—tended to be slow, bureaucratic, and inflexible. The solution was an early form of self-regulation—a customary law that was developed among merchants over several centuries, known by the 13th century as the *Lex Mercatoria* (Mercantile Law, or Law of Merchants).

Voluntary acceptance

The *Lex Mercatoria* was followed voluntarily by the mercantile community, with no state mandate, although individual nations did also pass laws affecting commerce.



Extensive maritime networks carried much of Europe's high-value trade, so it is not surprising that maritime law emerged as the forerunner of fully developed mercantile laws. As early as the 8th or 9th century, codes such as Rhodian Sea Law (which was introduced by the Byzantine Empire across the Mediterranean) had gathered together customary maritime rules. The growth of trading cities in Italy accelerated the process. Some laws gained widespread acceptance, such as the 11th-century *Tavole Amalfitane* (Amalfi Tables), whose 66 articles were observed across the western Mediterranean. Italian city-states such as Genoa and Venice had their own maritime trading laws, introduced in 1186 and 1258, respectively. The first such code in northwest Europe was the »

The Hanseatic League, whose seal is shown here, regulated maritime trade throughout much of northern Europe. Established in 1356, it maintained its role until the 17th century.